



**Order under Section 69  
Residential Tenancies Act, 2006**

**Citation:** LA v BORNAIS, 2025 ONLTB 94624

**Date:** 2025-12-10

**File Number:** LTB-L-089655-25

**In the matter of:** ROOM #3 (BASEMENT), 440 CAMPBELL  
AVE  
WINDSOR ON N9B2H4

**Between:** PHAT ANH LA Landlord

**And**

STACEY BORNAIS Tenant

PHAT ANH LA (the 'Landlord') applied for an order to terminate the tenancy and evict STACEY BORNAIS (the 'Tenant') because:

- the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has substantially interfered with the reasonable enjoyment or lawful right, privilege or interest of the Landlord or another tenant

The Landlord also claimed compensation for each day the Tenant remained in the unit after the termination date.

This application was heard by videoconference on December 1, 2025.

Only the Landlord assisted by Phat Anh La, a Cantonese's translator attended the hearing.

As of 9:48 a.m., the Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

**Determinations:**

1. On August 4, 2025, the Landlord gave the Tenant an N5 notice of termination deemed served on the same date. The termination date as outlined in the notice was also August 4, 2025. Therefore, the notice as served did not provide the Tenant an opportunity to void the notice as it did not comply with s. 64(2)(a) of the Act, that is, the termination date as

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provided did not meet the requirement of being no earlier than the 20<sup>th</sup> day after the notice is served.

2. Section 64 (1) of the Act outlines that a landlord may give a tenant notice of termination of the tenancy if the conduct of the tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant is such that it substantially interferes with the reasonable enjoyment of the residential complex for all usual purposes by the landlord or another tenant or substantially interferes with another lawful right, privilege or interest of the landlord or another tenant.

**Notice**

(2) A notice of termination under subsection (1) shall,

- (a) provide a termination date not earlier than the 20th day after the notice is given;
- (b) set out the grounds for termination; and
- (c) require the tenant, within seven days, to stop the conduct or activity or correct the omission set out in the notice.

3. As the first N5 notice is invalid, the Landlord is not permitted to proceed with the L2 application filing on the basis of a second, non-voidable N5 notice of termination under section 68 of the *Residential Tenancies Act, 2006* (Act). Therefore, the Landlord's application must be dismissed.

**It is ordered that:**

1. The Landlord's application is dismissed.

**December 10, 2025**

**Date Issued**

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Alicia Johnson

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto  
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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